

Analysis:

The motion is brought in reliance upon CCP section 473.5. Subdivision (b) of that section requires the defendant's motion to be accompanied by the "answer, motion, or other pleading proposed to be filed." The moving defendant failed to file such a pleading with its motion for relief.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600311	WU vs J&J REAL ESTATE INVESTMENT FUND LLC	ANTI-SLAPP MOTION (SPECIAL MOTION TO STRIKE)

Tentative Ruling:

The defendant's request for judicial notice is denied. The defendant's anti-SLAPP motion is denied.

Analysis:

The documents of which judicial notice is requested are irrelevant to the Court's analysis. For that reason, the request is denied.

The Court may decline to hear any anti-SLAPP motion that is filed more than 60 days after service of the complaint on the moving defendant. (CCP section 425.16, subd. (f).) Here, the motion was not filed until 52 days after the statutory deadline.

The defendant did not even address the issue of timeliness in its motion. It belatedly raised the issue in its reply, but even then did not explain why the Court should exercise its discretion to hear a late motion under the instant factual and procedural circumstances. It did not, for example, explain why the motion could not in the exercise of reasonable diligence have been filed sooner than 52 days after the deadline had passed.

The Court declines to hear the untimely motion.